Invitation for Bid - B2729 Air Filters

To be considered, proposals must be received prior to the proposal deadline, late proposals will not be accepted.

Proposers are advised that from the date this IFB is issued until the award of the Contract, no contact with Aurora Public Schools (APS) personnel related to this solicitation is permitted, except as authorized by the Purchasing Manager. **All inquiries regarding this solicitation must be submitted, by email to Eridanea Corral, at ecorralrocha@aurorak12.org**.

RETURN TO:

BidNet - B2729
Eridanea Corral
Aurora Public Schools

IFB SCHEDULE OF ACTIVITIES (subject to change)

EVENT	DATE
Issuance of IFB	Monday, November 9, 2026
Questions Deadline via BidNet	Monday, November 16, 2026 at 10am MST
Answers Addendum Issued	Thursday, November 19, 2026
Bid Submission Deadline	**Wednesday, December 9, 2026 at 10am MST**
Intent to Award	Wednesday, December 16, 2026

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EXHIBIT A: Price Sheet

EXHIBIT B: PO Terms and Conditions OR Sample District Contract

If any of the Documents listed above are missing from this package, please contact the Purchasing official, Eridanea Corral at ecorralrocha@aurorak12.org.

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SECTION I: VENDOR ACKNOWLEDGEMENT

Does your offer comply with all the terms and conditions? If no, indicate exceptions	Yes_____ No_____
Does your offer meet or exceed all specifications? If no, indicate exceptions	Yes_____ No_____
May any member of another governmental jurisdiction avail itself of this contract and purchase any and all items specified.	Yes_____ No_____
State percentage of prompt payment discount, if offered.	_____%
Will you accept the District's Visa as payment for goods and/or services purchased from this Proposal?	Yes_____ No_____
Will the Vendor have access to or collect any student data?	Yes_____ No_____

If a redacted version of your proposal is not received, we will share your master response in the event of a CORA Request. By signing this acknowledgment, you are confirming that you understand.

The undersigned hereby affirms that (1) he/she is a duly authorized agent of the Vendor, (2) he/she has read all terms and conditions and specifications which were made available in conjunction with this Solicitation and fully understands and accepts them unless specific variations have been expressly listed in his/her offer, (3) that the offer is being submitted on behalf of the Vendor in accordance with any terms and conditions set forth in this document, and (4) that the Vendor will accept any awards made to it as a result of the offer submitted herein for a minimum of ninety calendar days following the date of submission and (5) Vendor must acknowledge any and all addendum(a) below by initialing each box for the number of addenda received. (6) Section V. Code of Conduct and Conflict of Interest Certification shall be signed and returned with the Offer. (7) they comply specifically with the debarment and lobbying clauses Under Section II.

Name of Company: _____ Address: _____

City/State: _____ Zip: _____ Contact Person: _____

Title: _____ Phone: _____ Email Address:_____

Authorized Representative's Signature: _____

(Offers must contain signature of an authorized agent of the Vendor)

Printed Name: _____ Title: _____ Date: _____

Email Address: _____ Phone: _____

Addendum(s) Acknowledged	1	2	3	4	5	6	7	8	9	10	11

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SECTION II: GENERAL TERMS AND CONDITIONS

1. **APPLICABILITY**. These General Terms and Conditions apply, but are not limited to, all bids, proposals, qualifications and quotations (hereinafter referred to as "Offers'', "Proposals" or "Responses") made to the Adams-Arapahoe School District 28J (Aurora Public Schools, hereinafter referred to as "District") by all prospective vendors (hereinafter referred to as "Vendors" or "Contractors") in response, but not limited, to Invitations for Bid, Requests for Proposals, Requests for Qualifications, and Requests for Quotations (hereinafter referred to as "Solicitations").

2. **CONTENTS OF OFFER**

   A. General Conditions. Vendors are required to submit their Offers in accordance with the following expressed conditions:

   1) Vendors shall make all investigations necessary to thoroughly inform themselves regarding the plant and facilities affected by the delivery of materials and services as required by the conditions of the Solicitation. No plea of ignorance by the Vendor of conditions that exist or that may hereafter exist as a result of failure to fulfill the requirements of the contract documents will be accepted as the basis for varying the requirements of the District or the compensation to the Vendor.

   2) Vendors are advised that all District contracts are subject to all legal requirements contained in the District Board policies, the Purchasing Department's procedures, and state and federal statutes. When conflicts between the Solicitation and these legal documents occur, the highest authority will prevail.

   3) Submission of an Offer is deemed as acceptance of all terms, conditions and specifications contained in the District's Solicitations. Any proposed modification must be accepted in writing by the District prior to award of the Contract or Purchase Order.

   4) The District reserves the right to reject any and all Offers or any part thereof, to waive any irregularities or informalities, and to award the Solicitation to the Vendor as deemed in the best interest of the District.

   5) All Offers and other materials submitted in response to this Solicitation shall become the property of the District.

   6) The Vendor certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency. The Vendor shall comply with the regulations found within 45 CFR Part 620, "Government Debarment and Suspension (Non-procurement)."

   7) The Vendor certifies, to the best of its knowledge and belief that:

      No Federal appropriated funds have been paid or will be paid, by or on behalf of the Vendor, to any person for influencing or attempting to influence an officer or employee of any Federal agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, grant, loan, or cooperative agreement, or the extension, continuation, renewal, amendment, or modification thereof.

      If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence any of the individuals listed above in connection with this Federal contract, grant, loan, or cooperative agreement, the Vendor shall complete and submit Standard Form LLL, "Disclosure of Lobbying Activities," in accordance with its instructions.

      The Vendor shall require that the language of this certification and disclosure requirement be included in all subawards and contracts at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements), and that all subrecipients shall certify and disclose accordingly. no federal appropriated, or any other funds have been or will be paid on behalf of the Vendor, to any person for influencing the award of a Federal contract, grant, loan or cooperative agreement and the extension, continuation, renewal, amendment or modification of any Federal contract, grant, loan or cooperative agreement.

   8) The Vendor is required to carry the insurance linked here.

B. **Open Records – Disclosure of Information to the District**. The Vendor understands that all material provided or produced by the Vendor in response to this Solicitation may be subject to the Colorado Open Records Act ("CORA"), C.R.S. § 24-72-201, et seq. (2006). In the event of a CORA request to the District for disclosure of such information, the District shall advise the Vendor of such request in order to give the Vendor the opportunity to object to the disclosure of any of its proprietary or confidential material. In the event of the filing of a lawsuit to compel such disclosure, the District will tender all such material to the court for judicial determination of the issue of disclosure and the Vendor agrees to intervene in such lawsuit to protect and assert its claims of privilege and against disclosure of such material or waive the same. The Vendor further agrees to defend, indemnify and save and hold harmless the District, its officers, agents and employees, from any claims, damages, expenses, losses or costs arising out of the Vendor's intervention to protect and assert its claim of privilege against disclosure under this Article including, but not limited to, prompt reimbursement to the District of all reasonable attorney fees, costs and damages that the District may incur directly or may be ordered to pay by such court.

C. **Clarification and Modifications in Terms and Conditions**

1) Where there appear to be variances or conflicts between the General Terms and Conditions, the Special Terms and Conditions and the Specifications outlined in this Solicitation, the Specifications then the Special Terms and Conditions will prevail.

2) If any Vendor contemplating submitting an Offer under this Solicitation is in doubt as to the true meaning of the specifications, the Vendor must submit a **written request** (either via email or BidNet as determined on the Question Deadline on the IFB Schedule of Activities on page 1) for clarification to the District's Contact person as stated in the Special Terms and Conditions.

Any official interpretation of this Solicitation must be made, in writing, by an agent of the District's Purchasing Department who is authorized to act on behalf of the District. The District shall not be responsible for interpretations offered by employees of the District who are not agents of the District's Purchasing Department.

The District shall issue a written addendum if substantial changes which impact the technical submission of Offers are required. Aurora Public Schools utilizes Rocky Mountain E-Purchasing System (RMEPS/BidNet) at https://www.bidnetdirect.com/colorado to distribute official copies of the Solicitations, and any addenda for use in preparing Offers. Vendors are responsible for checking BidNet to retrieve any addendum (a). Vendor shall certify its acknowledgment of the addendum (a) on the Vendor Acknowledgement Form and return it with its Offer. In the event of conflict with the original contract documents, addenda shall govern all other contract documents to the extent specified. Subsequent addenda shall govern over prior addenda only to the extent specified.

D. **Prices Contained in Offer--Discounts, Taxes, Collusion**

1) Vendors may offer a cash discount for prompt payment. Discounts will be considered in determining the lowest net cost for the evaluation of Offers; discounts for periods of less than twenty days, however, will not be considered in making the award.

2) Vendors shall not include federal, state, or local excise or sales taxes in prices offered, as the District is exempt from payment of such taxes.

3) The Vendor, by affixing its signature to this Solicitation, certifies that its Offer is made without previous understanding, agreement, or connection either with any persons, firms or corporations making an Offer for the same items, or with the District. The Vendor also certifies that its Offer is in all respects fair, without outside control, collusion, fraud, or otherwise illegal action. To insure integrity of the District's public procurement process, all Vendors are hereby placed on notice that any and all Vendors who falsify the certifications required in conjunction with this section will be prosecuted to the fullest extent of the law.

4) All costs incurred in preparing a proposal shall be the responsibility of Vendors.

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3. PREPARATION AND SUBMISSION OF OFFER

A. Preparation

1) The Offer must be typed or legibly printed in ink. All corrections made by the Vendor must be initialed by the authorized agent of the Vendor.

2) Offers must contain a signature of an authorized agent of the Vendor in the space provided on the Solicitation Vendor Acknowledgement Form. **The original acknowledgement form of this Solicitation must be included in all Offers. If the Vendor's authorized agent fails to sign and return the original acknowledgement form of the Solicitation, its Offer shall be invalid and shall not be considered.**

3) Unit prices shall be provided by the Vendor on the Solicitation's Specification and Pricing Form when required in conjunction with the prescribed method of award and **shall be for the unit of measure requested.** Prices that are not in accordance with the measurements and descriptions requested may be considered non-responsive and may not be considered. Where there is a discrepancy between the unit price and the extension of prices, the unit price shall prevail.

4) Alternate Offers will not be considered unless expressly permitted in the Specifications Special Terms and Conditions.

5) The accuracy of the Offer is the sole responsibility of the Vendor. No changes in the Offer shall be allowed after the date and time that the Offers are due.

1) The proposal shall be formatted based on the requirements listed in Section IV and shall be labeled/numbered and combined into one single file.

B. Submission

1) **In person submittals will not be accepted.** Proposals must be uploaded and submitted through Rocky Mountain E Purchasing (BidNet) by or before the due date and time. Please ensure that this copy is complete and accurate and includes all proposal content, descriptions and pricing.

2) In the event that there is a CORA request the District asks that each Vendor submit one (1) separate redacted version of their proposal. Be sure to clearly mark each proposal file as "Master" or "Redacted". All redacted documents should be clearly marked as "Confidential", "Proprietary", "Privileged", etc. as appropriate and include a short statement explaining the basis why the records should be exempted from disclosure under CORA. The District will not be responsible for evaluating the incorrect proposal if they are not clearly labeled.

3) Unless otherwise specified, when a Specification and Pricing form is included as a part of the Solicitation, it must be used when the Vendor is submitting its Offer. The Vendor shall not alter this form (e.g. add or modify categories for posting prices offered) unless expressly permitted in the addendum duly issued by the District. No other form shall be accepted.

5) Offers submitted via facsimile machines or email will not be accepted.

C. **Late Offers**. Offers received after the date and time set for the opening shall be considered non-responsive. **To avoid technical issues, please do not submit proposals last minute as the bid auto closes online at the deadline time and emailed proposals will not be accepted.**

4. MODIFICATION OR WITHDRAWAL OF OFFERS

A. BidNet allows users to modify Offers prior to the time and date set for the Offers to be opened.

B. Withdrawal of Offers

1) Offers may be withdrawn prior to the time and date set for the opening. On BidNet, users may withdraw their Offer up until the deadline.

2) In accordance with the Uniform Commercial Code, Offers may not be withdrawn after the time and date set for the opening for a period of ninety calendar days. Such requests must be made in writing on company letterhead. If an Offer is withdrawn by the Vendor during this ninety day period, the District may, at its option, suspend the Vendor from the bid list and may not accept any Offer from the Vendor for a six month period following the withdrawal.

5. REJECTION OF OFFERS

A. Rejection of Offers. The District may, at its sole and absolute discretion:

1) Reject any and all, or parts of any or all, Offers submitted by prospective Vendors;

2) Re-advertise this Solicitation;

3) Postpone or cancel the process;

4) Waive any irregularities in the Offers received in conjunction with this Solicitation to accept an offer(s) which has additional value or function and/or is determined to be more advantageous to the District; and/or

5) Determine the criteria and process whereby Offers are evaluated and awarded. No damages shall be recoverable by any Vendor or challenger as a result of these determinations or decisions by the District.

B. Rejection of a Particular Offer. The District may, at its sole and absolute discretion, reject an Offer under any of the following conditions:

1) The Vendor misstates or conceals any material fact in its Offer;

2) The Vendor's Offer does not strictly conform to the law or the requirements of the Solicitation;

3) The Offer expressly requires or implies a conditional award that conflicts with the method of award stipulated in the Solicitation's Special Terms and Conditions;

4) The Offer does not include documents, including, but not limited to, certificates, licenses, and/or samples, which are required for submission with the Offer in conjunction with the Solicitation's Special Terms and Conditions and/or Technical Specifications;

5) The Offer has not been executed by the Vendor through an authorized signature on the Specifications Vendor Acknowledgement.

C. Elimination From Consideration

1) An Offer may not be accepted from, nor any contract be awarded to, any person or firm which is in arrears to the District upon any debt or contract or which is a defaulter as surety or otherwise upon any obligation to the District.

2) An Offer may not be accepted from, nor any contract awarded to, any person or firm which has failed to faithfully perform any previous contract with the District, state or federal government, for a minimum period of three years after this previous contract was terminated for cause.

3) An Offer may not be accepted from, nor any contract awarded to, any person related to any District employee and such a relationship would create a material financial interest or result in the violation of APS Board Policy GBEA by either Vendor or the District employee.

D. **Right to Waive Bids**. The District reserves the right to waive any technical or formal errors or omissions and to reject any and all bids, or to award contract for the items hereon, either in part or whole, if it is deemed to be in the best interest of the District to do so.

6. **AWARD OF CONTRACT**. The District shall award a contract to a Vendor through the issuance of a Formal Award, Contract or Purchase Order. The General Terms and Conditions, the Special Terms and Conditions, any Technical Specifications, the Vendor's Offer, and the Contract or Purchase Order are collectively an integral part of the contract between the Adams-Arapahoe School District 28J and the successful Vendor. Accordingly, these documents shall constitute a binding contract without further action by either party.

7. **APPEAL OF AWARD**. Vendors may appeal by submitting, **in writing**, a detailed request for reconsideration to the District's Executive Director of Finance within 72 hours after the recommendation of award is posted on BidNet, provided that the appeal is sought by the Vendor prior to the District finalizing a contract with the selected Vendor.

8. **NEGOTIATIONS**. The District reserves the right to conduct negotiations with Vendors and to accept revisions of any or all of the contents of the proposal(s). During this negotiation period, the District will not disclose any information derived from proposals submitted, or from discussions with other Vendors in response to CORA requests. Once an award is made and contract is executed, the solicitation file and the proposals contained therein are in the public record

9. **CONTRACTUAL OBLIGATIONS**

A. **Local, State and Federal Compliance Requirements.** Successful Vendors shall be familiar and comply with all local, state, and federal directives, ordinances, rules, orders, and laws applicable to, and affected by, this contract including, but not limited to, Equal Employment Opportunity (EEO) regulations, Occupational Safety and Health Act (OSHA), and Title II of the Americans with Disabilities Act (ADA).

B. **Disposition**. The Vendor shall not assign, transfer, convey, sublet, or otherwise dispose of this contract, including any or all of its right, title or interest therein, or its power to execute such contract to any person, company or corporation, without prior written consent of the District.

C. **Employees**. All employees of the Vendor shall be considered to be, at all times, employees of the Vendor, under its sole direction, and not an employee or agent of the District.

1) The District may require the Vendor to remove an employee it deems careless, incompetent, insubordinate or otherwise objectionable, and whose continued employment on District property is not in the best interest of the District.

2) The Vendor shall not employ, retain, hire or use any individual that has been convicted of any felony charges as the same is defined under the laws of the State of Colorado in the performance of the services to be rendered and materials to be provided to the District pursuant to this Solicitation unless the Vendor receives prior written permission.

3) In accordance with the District's policy regarding the use of tobacco and marijuana products, no employee of the Vendor shall be permitted to use tobacco and marijuana products when performing work on District property.

4) To protect the staff and program against undue invasion of the school or work day, sales representatives shall not be permitted in schools or other departments for the purpose of making sales unless authorized to do so by the Director of Purchasing or his/her designee. If special or technical details concerning goods or services to be purchased are required, the involvement of Vendors should be coordinated through the Purchasing Department.

5) **Background Checks.** The Contractor and every person, including any subcontractor or agent of the Contractor, who provides direct services to students, or who has access to student data, shall be required to have a criminal background check that meets the requirements of § 22-32-109.7, C.R.S. and other District requirements, including a fingerprint-based conviction investigation. A Colorado Bureau of Investigation criminal history check and Name Check investigation for

any person providing services under this Contract do not meet District requirements. The costs associated with the background checks are solely the Contractor's responsibility. Thereafter, any personnel, subcontractor, volunteer or agent hired or added during the term of this Contract shall satisfy the requirements set forth in this Section before performing services on Contractor's behalf. The Contractor shall make the background check results available upon request of the District in compliance with the provisions of § 24-72-305.3, C.R.S. The District also reserves the right to conduct its own criminal background check of every person before Services begin.

a. Notwithstanding the criminal background check requirement as set forth above, Contractor hereby certifies that no employee, subcontractor, volunteer or agent of the Contractor performing the Services has been convicted in Colorado or in any other State of a criminal offense involving: (i) the abuse, abduction, sexual molestation, physical or sexual assault on, or rape of a minor; or (ii) any crime involving exploitation of minors, including but not limited to, child pornography offenses or any crime of violence. Contractor shall notify the District immediately upon the discovery or receipt of any information that any person performing services on Contractor's behalf has been detained or arrested by a law enforcement agency of the aforementioned crimes. Contractor understands that allowing any employee, subcontractor, volunteer or agent of the Contractor performing the Services who has been arrested or convicted of the aforementioned crimes to: (i) provide direct services to students, (ii) access student data, or (iii) enter onto District property, constitutes a material breach of this Contract and may result in the immediate termination of this Contract and referral to law enforcement for possible criminal charges, or additional civil sanctions pursuant to federal and state law. Misdemeanor conviction(s) may not necessarily result in the immediate termination of this Contract. Misdemeanor convictions are evaluated on a case-by-case basis, considering the nature and gravity of the offense, time elapsed since the offense, conviction, or time served, and the nature of the Services. Upon the District's request, the Contractor shall provide documentation of every person performing the Services to substantiate the basis for this certification.

E. Delivery. Prices, quotes and deliveries are to be **FOB destination, freight prepaid**, and shall require inside delivery unless otherwise specified in the Solicitation's Special Terms and Conditions. Title and risk of loss shall pass to the District upon inspection and acceptance by the District at its designated point of delivery, unless otherwise specified in the Special Terms and Conditions. In the event that the Vendor defaults on its contract or the contract is terminated for cause due to performance, the District reserves the right to re-procure the materials or services from the next lowest Vendor or from other sources during the remaining term of the terminated/defaulted contract. Under this arrangement, the District shall charge the Vendor any difference between the Vendor's price and the price to be paid to the next lowest Vendor, as well as any costs associated with the re-solicitation effort

F. Material Priced Incorrectly. As part of any award resulting from this process, Vendor(s) will discount all transactions as agreed. In the event the District discovers, through its contract monitoring process or formal audit process, that material was priced incorrectly, the Vendor(s) agree to promptly refund all overpayments and to pay all reasonable audit expenses incurred as a result of the non-compliance.

G. Governing Law. Venue for any and all legal action regarding or arising out of transactions covered herein shall be solely in the State of Colorado. The laws of the state of Colorado shall govern the transaction.

H. Infringement Claims. The respondent shall defend all suits or claims for infringement of any alleged patent rights, copyright or trade secrets arising under this agreement and shall indemnify the District from loss on account thereof and shall pay any judgments or fees resulting there from, including, but not limited to, royalties, license fees and attorneys' fees.

10. MODIFICATIONS TO EXISTING CONTRACT.

Terms and conditions may be added, modified, and deleted upon mutual agreement between agents of the District and the Vendor provided that such terms and conditions remain within the scope and original intent of the Solicitation. Said terms and conditions may include, but are not limited to, additions or deletions of service levels and/or commodities and/or increases or decreases in the time limits for an existing contract. Any and all modifications to the existing contract must be expressed in writing through an Amendment to the contract and executed by authorized agents of the District and the Vendor prior to the enactment of such modifications.

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11. TERMINATION OF CONTRACT

A. The District may, by written notice to the successful Vendor, terminate the contract if the Vendor has been found to have failed to perform its service in a manner satisfactory to the District as per specifications, including delivery as specified. The date of termination shall be stated in the notice. The District shall be the sole judge of non-performance.

B. The District may cancel the contract, without penalty, upon thirty days written notice for reason other than cause. This may include the District's inability to continue with the contract due to the elimination or reduction of funding.

C. Any and all obligations of the District under this agreement are subject to annual budgeting and appropriation by the District.

12. ELECTRONIC SIGNATURES AND ELECTRONIC RECORD

A. Contractor consents to the use of electronic signatures by the District. This Agreement, and any other documents requiring a signature under this Agreement, may be signed electronically by the Owner in the manner specified by the Owner. The Parties agree not to deny the legal effect or enforceability of this Agreement solely because it is in electronic form or because an electronic record was used in its formation. The Parties agree not to object to the admissibility of the Agreement in the form of an electronic record, or a paper copy of an electronic document, or a paper copy of a document bearing an electronic signature, on the ground that it is an electronic record or electronic signature or that it is not in its original form or is not an original.

13. FORCE MAJEURE

A. Neither the Contractor nor the District shall be liable to the other for any delay in, or failure of performance of, any covenant or promise contained in this contract, nor shall any delay or failure constitute default or give rise to any liability for damages if, and only to the extent that, such delay or failure is caused by “force majeure”. As used in this contract “force majeure” means acts of God; acts of the public enemy; acts of the District and any governmental entity in its sovereign or contractual capacity; fires; floods; epidemics; quarantine restrictions; strikes or other labor disputes, freight embargoes; illegality, or unusually severe weather.

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SECTION III: SPECIAL TERMS AND CONDITIONS

1. **PURPOSE:** The Adams-Arapahoe School District 28J (Aurora Public Schools) is soliciting bids from qualified vendors to furnish HVAC air filters for various District facilities in accordance with the specifications outlined in this solicitation. The District requires a variety of standard and custom-sized HVAC air filters and packaging to accommodate the unique requirements of its heating, ventilation, and air conditioning systems. Vendors shall be capable of supplying and/or manufacturing specialty-sized filters, including custom cuts, and providing labeling, sorting, packaging, and delivery services based on individual facility and HVAC personnel requirements.

2. **TERM OF CONTRACT:** One year with four (4) one year options to renew.

3. **CONTACT PERSON:** For additional information regarding the Specifications and requirements of this Solicitation, please contact Eridanea Corral at ecorralrocha@aurorak12.org or 303-326-1988 Ext 28268. Unauthorized contact with a District employee other than the Purchasing Agent regarding this IFB may result in disqualification.

4. **RESPONSE TO QUESTIONS:** Questions which arise during the Response preparation period regarding issues around this Solicitation, purchasing and/or award should be directed, via BidNet. The Vendor submitting the question shall be responsible for ensuring that the question is received by the Procurement Agent on BidNet by the question deadline stated on the cover page of this solicitation.

   Any official interpretation of this Solicitation must be made by an agent of the District's Purchasing Department who is authorized to act on behalf of the District. The District shall not be responsible for interpretations offered by employees of the District who are not agents of the District's Purchasing Department.

5. **METHOD OF PAYMENT:** The successful Supplier shall submit an invoice to the District's Accounts Payable Department at accountspayable@aurorak12.org. The invoice shall reference the appropriate Purchase Order number, the delivery address, and the corresponding delivery ticket or packing slip number that was signed by the authorized representative of the District when the items were delivered and accepted. The date of the invoice shall not exceed thirty calendar days from the date of delivery of the items. Under no circumstances shall the invoice be submitted to the District in advance of the delivery and acceptance of the items.

6. **METHOD OF AWARD: - AGGREGATE:** It is the intent of the District to award this contract to the responsive, responsible Supplier who offers all items and whose pricing offers the lowest cost when all items are added in the aggregate and whose Offer will be most advantageous to the District. Notwithstanding, the District reserves the right to alter this method of award if such alteration results in a cost savings to the District. The District reserves the right to make multiple awards from this process. The District further reserves the right to periodically open this RFP to add more pre-qualified offers.

7. **PRICES SHALL BE FIXED AND FIRM FOR THE TERM OF THE CONTRACT:** If the Supplier is awarded a contract under this Solicitation, the prices proposed by the Supplier shall remain fixed and firm during the term of the contract, provided, however, that the Supplier may offer incentive discounts from this fixed price to the District at any time during the contractual term.

8. **SALES TAX:** The District is exempt from paying State or Local Sales Taxes. Notwithstanding, Vendors should be aware of the fact that all materials and supplies which are purchased directly by the Vendor in conjunction with this contract will be subject to applicable state and local sales taxes and these taxes shall be borne by the Vendor.

9. **SAMPLES OF PRODUCTS MAY BE REQUIRED DURING EVALUATION:** After the Responses are opened by the District, the Vendors may be required to submit a sample of the goods to be supplied for evaluation by, and at no cost to, the District. If samples are required, the District will notify the Vendor of such and will specify the deadline for submission of the samples. Each individual sample must be clearly labeled with the Vendor's name, Solicitation number, manufacturer's name and brand name, and style number if applicable. All samples shall become the property of the District. The District reserves the right to perform its own testing procedures or to send any and all samples to any certifiable laboratory for analysis. On the basis of this testing and analysis, the District shall be the sole judge of the acceptability of the sample in conformance with the Specifications and its

decision shall be final. Any samples submitted shall create an express warranty that the whole of the goods provided by the Vendor during the contract period shall conform to the sample submitted. The Vendor shall be required to provide adequate restitution to the District, in the manner described by the District, if this warranty is violated during the term of the contract.

10. **CONFLICTS WITHIN THE CONTRACT DOCUMENTS:** In the event that conflicts exist within the Contract Documents, the policies stated in the following paragraphs shall govern: A. Addenda shall supersede all other Contract Documents to the extent specified. Subsequent addenda shall supersede prior addenda only to the extent specified. B. Drawings and Specifications are intended to agree and be mutually explanatory and shall be accepted and used as a whole and not separately. Should any item be omitted from either the drawings or Specifications as specified, it shall be implied that such omissions are contained in both the drawings and the Specifications as necessary for the proper construction of the work herein specified. Should any error or disagreement between the Specifications and drawings exist or appear to exist, the Vendor shall not avail itself of such manifestly unintentional error or omission, but must have the same explained or adjusted by the District's Project Manager before proceeding with the work in question.

11. **COOPERATIVE PURCHASING EFFORTS:** Aurora Public Schools encourages and participates in cooperative purchasing endeavors undertaken by or on behalf of other governmental jurisdictions, to the extent, other governmental jurisdictions are legally able to participate in cooperative purchasing, the District supports such cooperative activities. (Examples of these cooperative efforts include: MAPO - Multiple Assembly of Procurement Officials, CEPC - Cooperative Educational Procurement Council). We hereby request that any member of other governmental jurisdictions be permitted to avail itself of this contract and purchase any and all items specified herein from the successful Vendor(s) at the contract price(s) established herein. Each governmental entity which uses a contract(s) resulting therefrom would establish its own contract, issue its own orders, schedule deliveries, be invoiced therefrom, make its own payments, and issue its own exemption certificates as required by the Vendor. It is understood and agreed that the District is not a legally binding party to any contractual agreement made between another governmental entity and the Vendor as a result of this Solicitation. The District shall not be liable for any costs or damages incurred by any other entity.

12. **INDEMNIFICATION**: The successful Vendor shall indemnify and hold the District harmless from any and all claims, liabilities, losses and causes of action which may arise out of the fulfillment of the Vendor's contractual obligations as outlined in this Solicitation. The Vendor or its insurer(s) shall pay all claims and losses of any nature whatever in connection therewith, and shall defend all suits, in the name of the District when applicable, and shall pay all costs and judgments which may issue thereon.

13. **EQUAL OPPORTUNITY:** Aurora Public Schools intends and expects that the contracting processes of the District and its Vendors provide equal opportunity without regard all protected classes inclusive of gender, race, ethnicity, religion, age or disability and that its Vendors make available equal opportunities to the extent third parties are engaged to provide goods and services to the District as subcontractors, Vendors, or otherwise. Accordingly, the Vendor shall not discriminate on any of the foregoing grounds in the performance of the contract, and shall make available equal opportunities to the extent third parties are engaged to provide goods and services in connection with performance of the contract **(joint ventures are encouraged)**. The Vendor shall disseminate information regarding all subcontracting opportunities under this contract in a manner reasonably calculated to reach all qualified potential subcontractors who may be interested. The Vendor shall maintain records demonstrating its compliance with this article and shall make such records available to the District upon the District's request.

14. **ACCESSIBILITY:** Vendor shall comply with and all Services provided under this Agreement shall be in compliance with all applicable provisions of §§24-85-101, et seq., C.R.S., and the Accessibility Standards for Individuals with a Disability, as established by the State of Colorado Governor's Office of Information Technology (OIT) pursuant to Section §24-85-103 (2.5), C.R.S. Vendors shall also comply with all State of Colorado technology standards related to technology accessibility and with Level AA of the most current version of the Web Content Accessibility Guidelines (WCAG), incorporated in the State of Colorado technology standards. Vendor shall indemnify, save, and hold harmless the District against any and all costs, expenses, claims, damages, liabilities, court awards and other amounts (including attorneys' fees and related costs) incurred by the District in relation to Vendor's failure to comply with §§24-85-101, et seq., C.R.S., or the Accessibility Standards for Individuals with a Disability as established by OIT pursuant to Section §24-85-103 (2.5), C.R.S.

15. **WORK PRODUCT:** Unless explicitly set forth in writing and executed by both parties, any intellectual property, software, research, reports, studies, data, photographs, negatives or other documents, drawings or materials (collectively "materials") delivered by Vendor in performance of its obligations under this contract shall be the exclusive property of Aurora Public Schools.

Ownership rights shall include, but not be limited to, the right to copy, publish, display, transfer, prepare derivative works, or otherwise use the materials. Vendor shall comply with all applicable Cyber Security Policies of the State of Colorado (the "State"), or Aurora Public Schools, as applicable, and all confidentiality and non-disclosure agreements, security controls, and reporting requirements.

16. **DELIVERY TIME AND LOCATION:** The Supplier shall deliver all items requested through this solicitation to 1369 Airport Blvd, Aurora, Colorado, 80011 ; 303-367-3000. Deliveries shall only be allowed between the hours of 6:00 a.m. and 2:30 p.m., Monday through Friday, excluding District Holidays.

17. **ESTIMATED QUANTITIES:** Estimated quantities or estimated dollars are provided in this solicitation for the Supplier's guidance only. No guarantee is expressed or implied as to quantities or dollars that will be used during the contract period. The District is not obligated to place an order for any given amount subsequent to the award of this Solicitation. Estimates quoted on the Specification and Pricing Form are based on the District's actual needs and usage during the previous contractual period or prior twelve month period, whichever is longer. Said estimates may be used by the District for purposes of determining the low Supplier meeting Specifications.

18. **PURCHASE OF OTHER ITEMS BASED ON PRICE QUOTES:** While the District has listed all major items on the Solicitation which are utilized by the District, there may be ancillary items that must be purchased by the District during the term of this contract. Under these circumstances, the District's Purchasing Department will contact the successful Supplier and obtain a price quote for the ancillary items and will also obtain price quotes from at least two other sources. The District reserves the right to award these ancillary items to the successful Supplier or to another Supplier based on the lowest price quote.

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SECTION IV: SPECIFICATION AND PRICING FORM

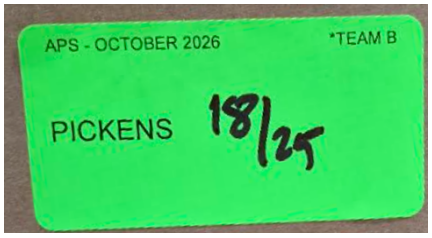
Aurora Public Schools require HVAC air filters in various sizes, quantities, and specified packaging to support the operation and maintenance of District HVAC systems. The District anticipates that additional air filter sizes and specifications may be required throughout the term of this contract due to new school construction, facility expansions or changes in operational needs. All additional air filters shall meet the District's required specifications and be subject to the terms and conditions of the awarded contract.

The awarded vendor shall be responsible for meeting the following requirements:

1. **Filter Availability:** Must provide standard and custom-sized HVAC air filters in accordance with APS specifications, including the sizes, types identified in Exhibit A - Price Sheet; all filters must have a minimum MERV 8 rating unless otherwise specified by the district.
2. **Ordering:** Receive and process recurring monthly orders submitted by authorized APS personnel. Order quantities and frequency may vary based on District needs. APS reserves the right to purchase more or less than estimated quantities as conditions require. Quantities listed shall not be interpreted as firm commitments under this contract.
3. **Custom-Sized Filters:** The supplier shall demonstrate the ability to supply custom-sized HVAC filters meeting District specifications, whether manufactured directly or obtained through an established supplier.
4. **Lead Times:** The supplier shall identify anticipated lead times for standard and custom-sized filters. The supplier shall promptly notify the District of any delays, product shortages or availability issues that may affect order fulfillment.
5. **Product Quality:** Ensure all supplied filters meet the specifications and quality requirements established by APS. Incorrect, damaged or defective products shall be corrected or replaced at no additional cost to the District when attributable to the vendor.
6. **Delivery:** All Air filters shall be delivered to the District's Maintenance and Operations location. If orders are not able to be delivered within the specified timeframe the District reserves the right to purchase from another source.
7. **Customer Support:** Provide a designated point of contact to assist with order inquiries, product availability, and tagging and bagging to each team member.
8. **Emergency Orders:** Provide information regarding the vendors ability to accommodate urgent or emergency filter requests, including applicable lead times and any additional charges.
9. **Sorting and Packaging:** Sort, package, and label filters by individual facility as directed by APS . Orders must be sorted, bagged, and tagged per job site, and per work order number provided with the order. Each shipment shall include labels as shown below
10. Orders must be delivered, unloaded, and grouped by team: The district properties are divided in 3 teams, example listed below:







11. **Packaging Requirements:** Package filters in boxes or appropriate protective packaging suitable for handling, transportation and storage. As listed in the example above ; labeling must have on each box Month/Year, Team it is assigned to, School/Location and box number out of the total number of boxes designated for that location.

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12. **Mandatory Requirements:** Bidders must demonstrate the ability to supply both standard and custom-sized HVAC filters meeting Districts specifications. Bidders must also demonstrate the ability to sort, package and label orders by individual District facilities in accordance with the requirements outlined in this solicitation. Failure to meet the mandatory requirements identified in this solicitation may result in a bid being deemed nonresponsive, subject to the District's applicable procurement requirements.

13. Pricing Schedule: Vendors shall complete Exhibit A - Price Sheet, providing unit pricing for the HVAC filters listed. Any additional charges associated with custom sizing, packaging, labeling, sorting, delivery, or other required services shall be clearly identified in the designated sections of Exhibit A.

PROPOSAL PREPARATION AND SUBMISSION REQUIREMENTS

To enable the District to conduct a uniform review of all proposals submitted in response to this solicitation, all components of the proposal shall be responded to and submitted as set forth below and in Section II. With the exception of the redacted copy, the proposal shall be in one combined file. The District reserves the right to reject submittals that do not follow the requested format.

SECTION A	Required Forms	Submit from this Invitation for Bid the signed and completed Vendor Acknowledgement, page 3, the Code of Conduct and Conflict of Interest Certification, page 16, and Vendors shall provide a copy of their Certificate of Insurance.
SECTION B	Management Summary	Include a management summary, which provides an overview of proposed products and services. Suppliers should emphasize why their proposal is best suited to meet the needs of the District. Please include warehouse location and hours of operations.
SECTION C	Pricing	Exhibit A - Specification and Pricing Form and Lead Time/Delivery schedule details
SECTION D	Redacted Bid Response	Provide a *separate* redacted bid response for CORA requests
		All proposal documents, with the exception of the redacted copy, are to be combined into a single file

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SECTION V: CODE OF CONDUCT AND CONFLICT OF INTEREST CERTIFICATION

I, _____, certify as an authorized representative of [_____], that I have read the District's ethical and purchasing policies, as listed below[1], related to my company conducting business with the District. I understand that the District's policies and regulations shall operate as a Code of Conduct. I agree to follow the District's Code of Conduct, and any legal and regulatory requirements applicable to my company's performance, work or contract, and that violating the District's Code of Conduct may result in immediate sanctions up to, and including the termination of my business relationship with the District. I understand that if I have questions concerning the meaning or application of the Code of Conduct or relevant legal and regulatory requirements, I will contact the appropriate District representative. I understand it is my responsibility to disclose any situation that might reasonably appear to be a violation of the Code of Conduct. I understand the absence of a specific guideline, practice or policy covering a particular situation does not relieve me from exercising the highest ethical standards applicable to the circumstances.

I have read the Code of Conduct, as listed below, which among other things, restates the District's policies prohibiting certain activities deemed illegal, unethical or against the best interest of the District. I accept and agree to the restrictions stated in the Code of Conduct. I hereby certify that I will comply with the Code of Conduct and to the best of my knowledge, all of my employees, subcontractors, and personnel under my supervision are aware of the Code of Conduct and will comply with its terms. I know and agree that it is incumbent upon me, and my employees to perform satisfactorily and to follow and comply with the District policies and rules as they are issued or modified from time to time.

I understand the District's Code of Conduct is a general guide to acceptable and appropriate behavior, and that I am expected to comply with it even though it may not contain all of the details and information needed during the course of my performance and work with the District.

During the period of time of my business relationship with the District, at no time will I, or any employee of mine: (i) engage in human trafficking or procure a commercial sex act; or (ii) use forced labor in the performance of my company's performance, work or contract with the District, including but not limited to, prison labor, indentured or slave labor, or bonded labor. I understand that if I, or any employee of mine, engage in any such activities my company's performance, work or contract may be immediately terminated by the District without penalty.

Further, when dealing with District employees, I will adhere to the highest ethical standards of business conduct. When seeking the resolution of regulatory or ethical issues affecting my company's interests I will do so solely on the basis of merit and pursuant to proper procedures in dealing with the District and its employees. At no time will I, or any employee of mine offer, provide or solicit, directly or indirectly, any special treatment or favor in return for anything of economic value, or the promise or expectation of future value or gain. In addition, there shall be no entertaining of District employees with the expectation of receiving any future value or gain.

I will not accept or offer gifts, employ any person who is working for the District, nor do I have any close,[2] or immediate family[3] relationships with the District. If I do, I will immediately disclose the name and relationship of that person or persons and any existing potential conflict of interest with that District employee or any employee who may make decisions in their jobs that would allow him or her to give or receive preferential or favorable consideration in exchange for anything of a personal benefit to themselves or their friends and families. I understand that such situations could interfere with an employee's ability to make judgments solely in the District's best interest.

Accordingly, I have listed below all relationships and outside activities, which may require disclosure under the policy. I have also listed names, addresses and the nature of the relationships of all persons or entities doing business with the District from whom I, or any member of my immediate family, have received, may receive in the future, directly or indirectly, cash or a gift of more than nominal value ($25.00). Finally, to ensure there is no perceived conflict of interest, I have listed the name of all individuals employed by the District that are related to me or anyone in my business regardless of his or her position.

Printed Name	Signature	Date

[1] **BCB** Board MemberConflict of Interest; **DJB** Purchasing Policy; **DJA** Purchasing Procedures; **DJG** Vendor Relations; **DIF** Information Regarding Anti-Fraud Compliance and False Claims; **GBEA** Staff Ethics/Conflict of Interest Policy; and **GBEBC** Gifts To and Solicitations by Staff Policy.[2] Close relationships means all persons, whether family or not, you may have a personal or business relation with performing work for, or on behalf of the District. [3] Immediate family means… spouse, partner in a civil union, children, related by blood or adoption,, siblings, parents, and in-laws (mother, father, brother, sister, daughter and son). See, Board Policy GBEA